

Córdoba — De Potestate Papae Q. III and satellite passages (1569/1604)

Latin–English parallel text: Opera lib. IV Q. III (pp. 260–270), canonization Q. (p. 318), lib. I Q. 17 (fol. 353)

<i>Latin</i>	<i>English</i>
A. Quaestio III — the heading and the main proposition (p. 260)	A. Quaestio III — the heading and the main proposition (p. 260)
QVAESTIO III.	QVAESTIO III.
<i>Vtrum Papa in fide & moribus diffiniendo possit errare.</i>	<i>Whether the Pope can err in defining in faith and morals.</i>
{marg. <i>Proposi.</i> } Respondeo quòd non: si vt Papa cum Consilio Cardinalium vel Patrum Ecclesiae Rom. faciat quod in se est ad cognoscendam veritatem, vti regulariter facere credendum est nisi oppositum constet manifestè: etiam ad modicum tempus errare non potest: & eius tali diffinitioni tãquam diffinitioni Ecclesiae Rom. atq; Catholicę sub crimine & pœna hæresis vel perfidię ab omnibus standum est. Hęc propositio tanquam verior magisq; fidei consentanea asseritur contra multos etiam Catholicos variè opinantes quę superius. q. 1. Arma fidei propositio. 10. cum suis limitationibus plenissimè probatur, ibi videatur.	{marg. <i>Proposition.</i> } I answer that he cannot: if, as Pope, with the Counsel of the Cardinals or of the Fathers of the Roman Church, he does what is in him to know the truth, as it is to be believed that he regularly does unless the opposite be manifestly established: he cannot err even for a brief time: and his such definition, as a definition of the Roman and Catholic Church, is to be stood by, by all, under the crime and penalty of heresy or perfidy. This proposition, as truer and more consonant with the faith, is asserted against many, even Catholics, opining variously; which above, q. 1. Arma fidei, propositio. 10., is most fully proved with its limitations: let it be seen there.
B. The Honorius reply (p. 264)	B. The Honorius reply (p. 264)
Ad aliud ex Concilio. 3. Constantinopolitano dico ideo Honorium illum diffiniendo de fide errasse: quia non fecit quod in se erat dum sine Cõsilio patrũ de suo capite temerè diffiniuit.	To the other [argument], from the Third Council of Constantinople, I say that that Honorius erred in defining concerning the faith for this reason: because he did not do what was in him, since without the Counsel of the fathers he temerarily defined out of his own head.
C. The two-track mechanism: due counsel, or general acceptance (p. 266)	C. The two-track mechanism: due counsel, or general acceptance (p. 266)
Ad secundam eiusdem consequentię probationem. Respon. concesso toto antecedente negatur etiã consequẽtia. Nam iudicialis diffinitio Papę, tũc solũ dicitur esse & est etiam sedis Apost. vel Ecclesię Ro. siue Cath. quando fit ab ipso Papa nõ abutente sua potestate sed potius faciente quod in se est, putà cum debito consilio Cardinalium atq; Sapien. vel qñ à solo Papa fit perseuerãter, ita videlicet q generaliter à fidelibus vel à Põt. & Sapien. Ecclesię & Cardinalibus sine vlla resistentia vel	To the second proof of the same consequence. I respond: the whole antecedent being conceded, the consequence likewise is denied. For the judicial definition of the Pope is then only said to be, and is, that also of the Apostolic See or of the Roman or Catholic Church, when it is made by the Pope himself not abusing his power but rather doing what is in him — to wit, with the due counsel of the Cardinals and Wise — or when it is made by the Pope alone perseveringly — that is to say, in such wise that it is generally accepted or observed as a rule of faith or morals by the faithful, or by the

Latin

contradictione generali ipsorum, vt regula fidei vel morū acceptatur vel obseruatur ad quod facit Archid. in c. sic oēs. d. 19. & B. Grego. in c. Apostolicæ. 35. q. 9. vbi dicitur, Apostolicæ sedis sententia tanta semper consilij moderatione concipitur: tanta patientia & maturitate decoquitur: tantaq; deliberationis grauitate profertur: vt nec immutari necessariū ducat: nisi fortè sic prolata sit vt retractari possit vel immutari si secundum tenorem præmissæ conditionis non existat. Hæc ibi. Faciūt etiam ea omnia quæ infra q. 4. in tertia opin. in prima eius parte secūdū doct. cōiter ibi allegatos habētur, quādo Papa & Consilium inter se inuicē dissentiūt cui nā eorum potius standum sit. & hoc modo neq; Papa neq; Eccles. Ro. siue Cath. neq; sedes Apost. simpliciter siue **p** accidēs in fide & moribus diffiniendo errare pōt, etiam ad modicum tempus, ita quod pro illo modico tempore error ille generaliter à fidelibus sine vlla cōtradictione vt regula fidei acceptetur & obseruetur vt dictū est. & cum his Couarruias in resolutionibus lib. 4. c. 16. num. 6. cōsonat expressè. Quādo verò Papa aliter se habens de fide vel moribus diffiniēs sic erraret **q** eius error non acceptaretur generaliter à fidelibus sed ei potius statim à Cardin. vel Prælati & Sapiē. Ecclesię cōtradiceretur, tūc ea diffinitio vel error nō dī nec est sedis Apost. vel Ecclesiæ Ro. siue Cath. sed ipsius Papę duntaxat etiam vt Papa est sua abutens potestate. Et hoc modo dicimus nō quidem quod sedes Apost. vel Ecclesia Rom. sed **q** Papa vt Papa si non facit quod in se est in diffiniendo de fide & moribus errare potest: non tñ perseueranter sed ad modicum tempus ita **q** is error ad totam non perueniat Ecclesiam vt declaratum est. & cum hac responsione consonat expressè Syluester tit. fides. q. 1. q. 6. q. 7. & tit. Ecclesia. q. 3. secūdum Panor. in c. significasti. de elect. & alios Doctores de Cōcilio Generali idem dicentes.

D. The heresy-note asymmetry: the See vs the Pope (p. 267)

{marg. *Coroll. 2.*} Ex quibus sequitur quòd licet sit hæreticum dicere simpliciter **q** sedes Apostolica vel Ecclesia Rom. in diffiniendo de fide & moribus errare aut in fide deficere potest. Non tamen hæreticum est, id dicere simpliciter de Papa etiam vt Papa est: sed hæc solū est temeraria opinio contra tot Doctores sanctos & Ecclesiæ decreta supra allegata oppositum simpliciter

English

Pontiffs and Wise of the Church and the Cardinals, without any resistance or general contradiction on their part; to which make the Archdeacon in c. sic oēs. d. 19. and Blessed Gregory in c. Apostolicæ. 35. q. 9., where it is said: The sentence of the Apostolic See is always conceived with such moderation of counsel, is digested with such patience and maturity, and is brought forth with such gravity of deliberation, that it deems it not necessary that it be changed: unless perchance it have been so brought forth that it can be retracted or changed, if it stand not according to the tenor of the premised condition. Thus far there. To this also make all those things which are had below, q. 4., in the third opinion, in its first part, according to the doctors commonly alleged there, when the Pope and the Council mutually dissent between themselves, as to which of them is rather to be stood by. And in this way neither the Pope nor the Roman or Catholic Church nor the Apostolic See can err, simply or per accidens, in defining in faith and morals, even for a brief time — in such wise, that is, that for that brief time that error be generally accepted and observed by the faithful, without any contradiction, as a rule of faith, as has been said. And with these things Covarruias, in resolutionibus lib. 4. c. 16. num. 6., expressly accords. But when the Pope, bearing himself otherwise, defining concerning faith or morals, should so err that his error would not be generally accepted by the faithful, but rather would immediately be contradicted by the Cardinals or the Prelates and Wise of the Church, then that definition or error is not said to be, nor is, of the Apostolic See or of the Roman or Catholic Church, but of the Pope himself alone, even as he is Pope, abusing his power. And in this way we say, not indeed that the Apostolic See or the Roman Church, but that the Pope as Pope, if he does not do what is in him, can err in defining concerning faith and morals: yet not perseveringly, but for a brief time, in such wise that this error does not reach the whole Church, as has been declared. And with this response Sylvester expressly accords, tit. fides. q. 1. q. 6. q. 7. and tit. Ecclesia. q. 3., according to Panormitanus in c. significasti. de elect., and the other Doctors saying the same concerning a General Council.

D. The heresy-note asymmetry: the See vs the Pope (p. 267)

{marg. *Corollary 2.*} From which it follows that although it is heretical to say simply that the Apostolic See or the Roman Church can err in defining concerning faith and morals, or can fail in faith. Yet it is not heretical to say this simply of the Pope, even as Pope: but this is only a temerarious opinion, against so many holy Doctors and decrees of the Church alleged above which say simply the opposite: on account of which that opinion seems also

Latin

dicētia: propter quæ etiam malè sonans ea opinio videtur. quamvis Cano vbi sup. lib. 6. c. 7. & 8. temerè & iniuriosè contra tot Doctores Catholicos oppositum opinantes idq̃; simpliciter de Papa dicentes nec per Ecclesiam in hoc reprobatos, censeat quòd id simpliciter dicere de Papa sit etiam hæreticū sicut de sede Apostolica & Ecclesia Roma. id similiter dicere hæreticum est. At verò dicere cum expressa limitatione quòd Papa faciens quod in se est cum consilio Cardinaliū atque Sapientum, aut quòd perseueranter ad sensum iam declaratum in diffiniēdo de fide & moribus errare possit, ego certè periculosum & erroneum in fide & fortè etiam hæreticū opinando iudicarem, vti superius in respon. ad quartū argumentum & q. 1. Arma fidei. proposi. 10. dictum est.

E. The double indefectibility and the moral-certainty answer (pp. 267–268)

{marg. *Respon. ad replic.*} Respondeo negando sequelam sed solum sequitur & cōceditur **Q** in eo casu quo Papa nō faciēs quod in se est erraret in fide, Deus nō permittet **Q** Eccles. Ro. siue Cath. generaliter illius errorē sequat̃ sed potius illi cōtradicit: quodq̃; ipse Papa ad faciendum quod in se est cōsilium & adiutorium sufficiens habebit à suis membris fidelibus etiam à Deo illuminatis ne ipse erret vel ne in errore permaneat: & vt ipsi etiam facienti quod in se est Deus vti promisit tandem assistat opportunè vt iudicialiter de fide & moribus rectè diffiniat. idq̃; ita fiet vt proximè in responsione ad primam cōfirmationem dictum est. Itaq; assistentia Diuina repromissa sedi Apostolicæ aut Papæ faciēti quod in se est nūquam illi deerit: sed neq; Ecclesiæ Rom. siue Catholicæ, vt errantis Papæ vnquā sequatur errorē, vti declaratum est. Sicq̃; fit vt magisterium fidei & morum certum & infallibile hoc vel illo modo in sede Apostolica & Ecclesia Rom. siue Catholica semper sit & nunquam deficiat. Quod autē in fine confirmationis dicitur quòd non est certitudo si est verus Papa, aut si Papa fecit quod in se est. Respondeo quod licet non sit certitudo fidei Catholicæ aut infallibilis: est tamen certitudo moralis aut esse potest dum de opposito non constat manifestè: & hæc certitudo sufficit ad opinandum quòd errare non potest: quodq̃; eius diffinitioni sub crimine & pēna hæresis omnes stare

English

ill-sounding. Although Cano, vbi sup. lib. 6. c. 7. & 8., temerarily and injuriously — against so many Catholic Doctors opining the opposite and saying it simply of the Pope, nor reproved by the Church in this — judges that to say this simply of the Pope is also heretical, just as to say it likewise of the Apostolic See and the Roman Church is heretical. But indeed, to say with express limitation that the Pope doing what is in him, with the counsel of the Cardinals and Wise, or that perseveringly, in the sense already declared, he can err in defining concerning faith and morals — this I for my part should certainly judge, by way of opinion, to be dangerous and erroneous in faith, and perhaps even heretical, as has been said above in the response to the fourth argument and q. 1. Arma fidei. proposi. 10.

E. The double indefectibility and the moral-certainty answer (pp. 267–268)

{marg. *Response to the rejoinder.*} I respond by denying the sequel; but it only follows and is conceded that, in that case in which the Pope, not doing what is in him, should err in the faith, God will not permit that the Roman or Catholic Church generally follow his error, but rather she will contradict it: and that the Pope himself, for the doing of what is in him, will have counsel and help sufficient from his faithful members, illuminated also by God, lest he err, or lest he remain in error: and so that to him also, doing what is in him, God, as he promised, may at last assist opportunely, that he may judicially define rightly concerning faith and morals. And this will so come to pass, as has just been said in the response to the first confirmation. Therefore the Divine assistance promised to the Apostolic See, or to the Pope doing what is in him, will never fail him: but neither [will it fail] the Roman or Catholic Church, so that it should ever follow the error of an erring Pope, as has been declared. And thus it comes to pass that the magisterium of faith and morals, certain and infallible in this way or in that, in the Apostolic See and the Roman or Catholic Church always exists and never fails. But as to what is said at the end of the confirmation, that there is no certitude whether he is the true Pope, or whether the Pope did what was in him. I respond that although it is not a certitude of Catholic faith, or infallible: there is nevertheless moral certitude, or there can be, so long as the opposite is not manifestly established: and this certitude suffices for opining that he cannot err: and that all are bound to stand by his definition

Latin

teneantur, vt hoc etiam inferius in responsione ad replicam secundæ confirmationis subsequenter latius declaratur.

F. The rejoinder and the privilege-clause (pp. 268–269)

{marg. *Replic. 1.*} Contra hanc respon. & cōtra prædicta omnia & contra ipsam propo. principalē suprapositam fortius replicatur. Nam si Papa non faciēs quod in se est diffiniendo de fide & moribus ad modicum tempus licet non perseueranter errare posset: si etiam illius erroneæ diffinitioni tunc à fidelib. cōtradici & resisti posset, vt ait illa propositio: ergo in dubijs fidei vel morū nō est simplicitē & absolutē standū eius diffinitioni, etiā quando de eius errore non constaret manifestē quousque per Ecclesiā eius diffinitio generaliter approbetur vel acceptetur. Hoc aut cōcedere erroneū & periculosum est vt proximē patebit. Quōd aut id sequatur planē probatur. nam quæro vtrū Papali diffinitioni nō manifestē erroneæ ab omnibus fidelibus semper, etiā statim pro illo modico tempore, quo illi per Ecclesiam non contradicitur standum & obediendum sit: an non? Si sic iam eius error si sit erronea diffinitio acceptatur ab Ecclesia vel saltē ad eā totā puenit id qđ nec est possibile nec ab ipsa cōceditur opinione vel ppositione cōtra quā arguitur.

Si nō acceptatur nec illi obediendū est: sed potius ei resisti potest si sit erronea diffinitio, vt ipsa cōcedit opinio vel propositio. Iā plura sequūtur incōuenientia. primū q vt in hac replica illatum est in dubijs fidei & morū nō est simpliciter standū Papæ diffinitioni &c. hoc aut est contra omniū Doct. auctoritates & Ecclesiæ decreta supracitata in arg. & secūda eius cōfirmatione: q eodē modo absolutē dicūt q in dubijs fidei standum est Papæ diffinitioni sicut & sedis Apost. & Ecclesiæ Ro. sine vlla differētia aut limitatione si fecit quod in se est, aut si est perseuerās vel acceptata ab Ecclesia: quam tamē limitationē vel differentiā facile facere vel explicare potuissent & vtiq; debuissent & alicubi fecissent si cum ea de Papa aliter q de sede Apost. vel Ecclesia Ro. id dicere intēdisent. Secundum incōueniens est quod quilibet præsertim docti quilibet etiā hereticare aut suas opin. sequi volentes possent in illo modico tēpore aut statim cōtradicare cuicūque diffinitioni Papali in dubijs fidei & morum alterā partē etiā rectē diffiniēti: maximē si pro se aliquorū Cath. habeāt

English

under the crime and penalty of heresy, as this too is declared more at length below, in the response to the rejoinder of the second confirmation following.

F. The rejoinder and the privilege-clause (pp. 268–269)

{marg. *Rejoinder 1.*} Against this response, and against all the foregoing, and against the principal proposition itself set down above, a stronger rejoinder is made. For if the Pope, not doing what is in him, could err in defining concerning faith and morals for a brief time, though not perseveringly: if also his erroneous definition could then be contradicted and resisted by the faithful, as that proposition says: then in doubts of faith or morals his definition is not simply and absolutely to be stood by, even when his error should not be manifestly established, until his definition be generally approved or accepted by the Church. But to concede this is erroneous and dangerous, as will presently appear. But that this follows is plainly proved. For I ask whether a Papal definition not manifestly erroneous is always to be stood by and obeyed by all the faithful, even immediately, for that brief time in which it is not contradicted by the Church: or not? If so, then its error, if it be an erroneous definition, is accepted by the Church, or at least reaches the whole of her — a thing which is neither possible, nor is conceded by that very opinion or proposition against which the argument is made.

If it is not accepted, neither is it to be obeyed: but rather it can be resisted, if it be an erroneous definition, as that opinion or proposition itself concedes. Then many inconveniences follow. The first: that, as has been inferred in this rejoinder, in doubts of faith and morals the Pope's definition is not simply to be stood by, &c. But this is against the authorities of all the Doctors and the decrees of the Church cited above in the argument and in its second confirmation: which in the same way say absolutely that in doubts of faith the Pope's definition is to be stood by, just as that of the Apostolic See and of the Roman Church, without any difference or limitation of "if he did what was in him," or "if it is persevering or accepted by the Church": which limitation or difference, nevertheless, they could easily have made or explained, and certainly ought to have, and somewhere would have made, if with it they had intended to say this of the Pope otherwise than of the Apostolic See or the Roman Church. The second inconvenience is that anyone — especially the learned, anyone even wishing to turn heretic or to follow their own opinions — could in that brief time, or immediately, contradict any Papal definition whatsoever in doubts of faith and morals,

Latin

auctoritatē, putā quod Papa pōt in voto solēni castitatis aut religionis aut in matrimonio tantū rato dispēsare. & alijs huiusmodi, vt fecisse dī Ochā cū quibusdā alijs cōtra dñm Io. 22. de paupertate Christi & F. Minorū diffinientē: allegātes illā Papæ diffinitionē esse erroneam in fide: ex quo nondum per totā Eccl. acceptata erat, sed ab eis contradicebatur, qui de numero Catholicorū erāt & cēsebantur. Tertium inconueniēs est quod quilibet facile posset causari Papam nō verē fecisse quod in se erat, saltē posset de eo dubitare: quāuis in foro exteriori præsūmi debeat id debitē fecisse cū de opposito manifestē non cōstaret. at cum in foro conscientiæ & veritatis, qualis diffinitio de fide est, debeat præsumptio cedere veritati: certē posset dubitare an Papa verē fecerit quod in se est, & Deus illi astiterit: & ex consequenti rectē ne an erroneē in fide diffinierit. & ita non firmiter sed dubitādo posset eius stare diffinitioni: qđ tñ est cōtra p̄dicta Doct. & Ecclesię decreta. Quartum incōueniens est, q̄ ignotū est, qui sint illi q̄ Papali diffinitioni tāquam erroneæ (si erronea esse pōt) debeāt resistere, & qūo, & quantū tps ab eius diffinitione cēseatur modicū vt illa diffinitio nō sit neq; dicatur perseuerās: ita vt intra illud tps & nō postea resisti possit eidem. Itaque propter hęc & alia eiusmodi inconuenientia videtur q̄ illa propositio contra quā arguitur sit erronea & valde periculosa & ansam præbens omnibus hæreticare aut errare paratis. & èconuerso hæc opinio quæ in hoc sexto argumēto supra posito continetur vera & Catholica sit.

{*marg. Respon. ad replic. 1.*} Respondeo ad hanc replicam negādo consequentiam: & ad eius probationem vbi quæritur. Vtrum in dubijs fidei standum sit diffinitioni Papali, an non. Respondeo, quod quando de eius errore non cōstat manifestē, aut quando illi diffinitioni statim vt edita est ab Ecclesia nō contradicatur generaliter à fidelibus Cardinalibus, & Pōtificibus & sapientibus Ecclesiæ Rom. siue Catholicæ tūc vt vera & Catholica ab omnibus firmiter tenenda & non solum præsūmenda est. neque tunc etiam ad modicum tempus eius error si esset erronea ab Ecclesia vel à fidelibus eius generaliter potest acceptari vel etiam dissimulari:

English

even one rightly defining the other side: especially if they should have for themselves the authority of some Catholics — for instance, that the Pope can dispense in a solemn vow of chastity or of religion, or in a marriage merely ratified, and in other things of this kind — as Ockham is said to have done, with certain others, against the lord John 22 defining concerning the poverty of Christ and of the Friars Minor: alleging that that definition of the Pope was erroneous in faith: inasmuch as it had not yet been accepted by the whole Church, but was contradicted by them, who were, and were reckoned, of the number of Catholics. The third inconvenience is that anyone could easily plead that the Pope had not truly done what was in him — at least he could doubt of it: although in the exterior forum it ought to be presumed that he duly did it, so long as the opposite should not be manifestly established. But since in the forum of conscience and truth — of which sort a definition of faith is — presumption ought to yield to truth: certainly he could doubt whether the Pope truly did what was in him, and God assisted him: and consequently whether he defined rightly or erroneously in the faith. And so not firmly, but doubting, could he stand by his definition: which nevertheless is against the aforesaid authorities of the Doctors and decrees of the Church. The fourth inconvenience is that it is unknown who those are who ought to resist a Papal definition as erroneous (if it can be erroneous), and how, and how much time from his definition is to be reckoned brief, so that that definition neither be nor be called persevering: in such wise that within that time, and not afterwards, it can be resisted. Therefore, on account of these and other inconveniences of this kind, it seems that that proposition against which the argument is made is erroneous and very dangerous, and gives a handle to all who are ready to turn heretic or to err: and conversely, that this opinion which is contained in this sixth argument set down above is true and Catholic.

{*marg. Response to rejoinder 1.*} I respond to this rejoinder by denying the consequence: and to its proof, where it is asked, Whether in doubts of faith the Papal definition is to be stood by, or not. I respond that when his error is not manifestly established, or when that definition, as soon as it is issued, is not generally contradicted by the Church — by the faithful Cardinals, and Pontiffs and wise of the Roman or Catholic Church — then it is to be held firmly by all as true and Catholic, and not only presumed. Nor then, even for a brief time, can its error, if it were erroneous, be generally accepted or even dissembled by the Church or by her faithful: but immediately, as soon as that erroneous definition of the Pope had been issued in public, it would also be

Latin

sed statim vt in publicum edita esset illa erronea diffinitio Papę ei & à fidelibus vt dictū est generaliter contradiceretur. & hoc est priuilegium à Christo concessum siue promissio facta sedi Apostolicę & Ecclesię Romanę siue Catholicę, quòd licet Papa ex sua culpa nō faciens quod in se est, vel sine debito consilio Cardinalium atque Sapientum possit de fide diffiniēdo errare: non tamen ita quod eius error ab Ecclesia statim non deprehendatur vt illi resistat per Doctores suos atq; Pontifices generaliter vt dictum est. & hoc est quod sæpe diximus quòd ad modicum tempus non perseuerāter Papa de fide diffiniendo si non facit quod in se est errare potest: non tamen ita quòd Ecclesia Rom. siue Catholica vel fideles eius generaliter etiam ad modicum tempus illud, errorem illum acceptēt siue dissimulent vel ei statim non contradicent. Neque enim Ecclesia vel ad modicum tempus fideles suos in aliquo errore fidei vel morū stare scienter p̄mittit neq; dissimulat, vt in illa probatione cōsequentię malē supponitur, quasi nos id superius dicere voluerimus; quod tamē neq; dicimus neq; ita sentimus, sed vt proximē declaratum est. Error nāque cui nō resistitur, approbatur. dist. 83. c. error. & ita nullum sequitur incōueniens de supradictis: neque datur ansa hæreticis aut alijs errare paratis. Nam dum in dubijs fidei à Catholicis, Cardinalibus & Pontificibus & Sapiētibus Ecclesię generaliter non contradicatur diffinitioni Papali vt erroneę in fide statim vt edita est, non possunt aliqui etiam docti eidem tanquam erroneę contradicere: sed neque de illa dubitare, aut si Papa fecit quod in se erat, aut si Deus illi astitit, aut si Papa sic diffiniendo errat: sed vt dictum est firmiter tenendum est quòd Deus illi astitit & verissima & Catholica est diffinitio cui Ecclesia non contradicit: & tanquā tali omnes stare & obedire tenentur. vti Doctores omnes atq; Pontifices & Concilia vbi supra simpliciter decernunt.

G. The interim-obedience doubt (pp. 269–270)

{marg. 1. *Dubium.*} Sed ad prædicta omnia contenta in hac tertia & 2. q. præced. tria dubitantur. Primum, nam postquam illi diffinitioni Papali tanquam erroneę vel in fide suspectę à Proceribus Ecclesię statim cœptū est contradici, quibus adhuc Papa resistit, cōstat quòd requiritur tempus & quandoque satis magnum vt in re dubia fidei illa Papę diffinitio non manifestē erronea cum debita maturitate ab illis & alijs generaliter

English

generally contradicted by the faithful, as has been said. And this is a privilege conceded by Christ, or a promise made to the Apostolic See and the Roman or Catholic Church, that although the Pope, by his own fault not doing what is in him, or without the due counsel of the Cardinals and Wise, can err in defining concerning the faith: yet not in such a way that his error should not immediately be detected by the Church, so that she resists it through her Doctors and Pontiffs generally, as has been said. And this is what we have often said: that for a brief time, not perseveringly, the Pope, in defining concerning the faith, if he does not do what is in him, can err: yet not in such wise that the Roman or Catholic Church, or her faithful generally, even for that brief time, should accept or dissemble that error, or should not immediately contradict it. For neither does the Church knowingly permit her faithful to stand in any error of faith or morals even for a brief time, nor does she dissemble it, as is wrongly supposed in that proof of the consequence — as if we had wished to say this above; which nevertheless we neither say nor so think, but as has just been declared. For the error which is not resisted, is approved. dist. 83. c. error. And so no inconvenience follows from the aforesaid: neither is a handle given to heretics or to others ready to err. For so long as, in doubts of faith, the Papal definition, as soon as it is issued, is not generally contradicted as erroneous in faith by the Catholics, Cardinals and Pontiffs and Wise of the Church, no men — even learned — can contradict it as erroneous: nor even doubt of it, or whether the Pope did what was in him, or whether God assisted him, or whether the Pope in so defining errs: but, as has been said, it is to be held firmly that God assisted him, and that the definition which the Church does not contradict is most true and Catholic: and all are bound to stand by and obey it as such. As all the Doctors and the Pontiffs and Councils, vbi supra, simply decree.

G. The interim-obedience doubt (pp. 269–270)

{marg. *Doubt 1.*} But concerning all the aforesaid things contained in this third and in the 2nd preceding q., three things are doubted. The first: for after that Papal definition, as erroneous or suspect in faith, has immediately begun to be contradicted by the Chief Men of the Church, whom the Pope still resists, it is evident that time is required, and sometimes a rather long one, in order that, in a doubtful matter of faith, that definition of the Pope, not manifestly erroneous, be examined with due maturity by them and by others

Latin

cōuenientibus in vnum examinetur & concorditer diffiniatur, sitne tandem acceptanda an refutanda. dubitatur inquam, quid illo tempore intermedio fideles facere teneantur: obedient ne illi Papali diffinitioni, an non? nam vtrobique inconueniens aut periculum esse videtur, vel inobedientię si recta, vel erroris etiam generalis fidelium Ecclesię si erronea diffinitio illa demum fuerit inuenta.

{marg. *Respondeo.*} Respondeo quòd illo tempore intermedio, obediendum est ab omnibus illi Papali diffinitioni, quousque sit generaliter diffinitū quòd erronea est. Sicut & in dubijs cuiq; superiori eius subditi omnes cum bona fide & formata bona conscientia obedire tenentur, dū maius aliunde periculum non imminet alicui, vt in tertio libro de Conscientia. quęst. 8. superius habetur, & interim subditi obediētes excusantur à culpa erroris per ignorātiā inuincibilem. Sicut Adrianus in primo quodlib. artic. 3. in responsione ad tertium argumētum dicit de illis qui secuti sunt aliquas Papę diffinitiones erroneas, modo opinatiuē modo assertiuē illę fuerint, vti superius in respon. ad quintum argumentum dictum est: quousque per successores opposita veritas diffinita fuit. Neque tūc Ecclesia aut sedes Apostolica dicitur errare aut errorem illum cognitum dissimulare, ex quo non illum acceptat sed ei potius cōtradicit: quousque veritas examinetur & tandem diffiniatur vt dictum est. sed solum dicitur rem dubiam interim ignorare: & de illa cum debita maturitate quamuis resistendo tractare, & errorem illum in inuincibiliter ignorantibus rectē tolerare. quousque Diuinitus illuminetur & de veritate constet sufficienter. Sed neque est inconueniēs Ecclesiam vniuersalem pro aliquo tempore aliquas fidei veritates pro tunc vel absolutē ad salutem nō necessarias ignorare: esset autem inconueniens pro aliquo tempore etiam paruo errorem aliquem amplecti aut diffinire, aut etiā scienter dissimulare vt supra dictū est. Quòd si inter Procere & Sapiētes Ecclesię etiā in Concilio Generali sit aliqua dissensio atque varietas super tali dubio vel Papę diffinitione: tunc ipsius Papę diffinitioni standum est. neque poterit erronea esse siue cēseri, ex quo nō communiter ab Ecclesia & Pontificibus, & sapientibus eius, sed ab aliquibus tantum illi resistitur aut contradicatur. ad quorum litigium dirimendum Papa qui habet fidei magisteriū legitimus iudex à Christo constitutus

English

generally coming together into one, and be concordantly defined, whether it is finally to be accepted or refuted. It is doubted, I say, what the faithful are bound to do in that intermediate time: shall they obey that Papal definition, or not? For on both sides there seems to be an inconvenience or a danger: either of disobedience, if it be right; or of error, even general error of the faithful of the Church, if that definition at last be found erroneous.

{marg. *I respond.*} I respond that in that intermediate time, that Papal definition is to be obeyed by all, until it be generally defined that it is erroneous. Just as also in doubts all his subjects are bound to obey any superior with good faith and a formed good conscience, so long as no greater danger from elsewhere threatens anyone, as is had above in the third book, de Conscientia. quęst. 8.; and meanwhile the obedient subjects are excused from the fault of error through invincible ignorance. As Adrian, in primo quodlib. artic. 3., in the response to the third argument, says of those who followed certain erroneous definitions of the Pope — whether those had been now by way of opinion, now by way of assertion — as has been said above in the response to the fifth argument: until the opposite truth was defined by the successors. Nor is the Church or the Apostolic See then said to err, or to dissemble that known error, inasmuch as she does not accept it but rather contradicts it: until the truth be examined and at last defined, as has been said. But she is only said meanwhile to be ignorant of a doubtful matter: and to treat of it with due maturity, though resisting, and rightly to tolerate that error in those invincibly ignorant, until she be Divinely illuminated and the truth be sufficiently established. But neither is it an inconvenience that the universal Church for some time be ignorant of certain truths of the faith not necessary, for the time or absolutely, to salvation: but it would be an inconvenience for some time, even a small one, to embrace or define any error, or even knowingly to dissemble it, as has been said above. But if among the Chief Men and Wise of the Church, even in a General Council, there be some dissension and variety over such a doubt or definition of the Pope: then the definition of the Pope himself is to be stood by. Nor will it be able to be erroneous, or be reckoned so, inasmuch as it is resisted or contradicted not commonly by the Church and the Pontiffs and her wise, but only by some. For the settling of whose dispute the Pope, who has the magisterium of the faith, has been constituted the legitimate judge by Christ, as can easily be established from the authorities aforesaid. But if there be dissension between the Council and the Pope himself, to whose definition

Latin

est, vti ex auctoritatibus supradictis facilè constare potest. Si autem inter Cōcilium & ipsum Papam dissensio sit, cui nam potius sit obediendum diffinitioni, infra quæst. 4. in tertia opinione in prima eius parte & eius probatione latius habetur ibi: videatur.

H. Canonization: savoring of heresy by composition (p. 318)

{marg. badly inked italic note, apparently *Respon. ad secundum dubium*} ¶ Ad secundum dubium vtrum aliquis sanctus canonizatus sit aut esse possit in inferno respon. quod nō: immo & id dicere temerarium & impium insuper, & sapiens hæresim non tamen hereticum cēseo, quod sit temerarium & impium constat ex supradictis.

¶ Quod sit sapiens hæresim probatur, quia oppositum sapit fidem. Nam id sapit fidē quod in bona consequētia sequitur ex vna propositione de fide & ex alia quæ licet nō sit de fide nō tñ rationabiliter negari pōt. Et ita est in pposito. Nā bene sequitur in Darij, vel in Barbara. omnis verè & finaliter sanctus est in cælo beatus & est venerandus & inuocādus, & in sua sanctitatē imitādus. Sed istæ, & quilibet canonizatus est verè & finaliter sanctus. Ergo & est in cælo beatus & venerādus, &c. Ecce qūo in bona consequentia ex illa maiori de fide, & ex illa minori quæ non nisi temere irrationabiliter, & impiè negari pōt, vt cōstat ex supradictis, sequitur illa conclusio sapiens fidē: cuius opposita, quod. s. sanctus canonizatus est in inferno, ideo sapit heresim. quod iterū probatur. Nam ista propositio in bona consequentia in Ferio sequitur ex vna hæretica, & ex alia quæ rationabiliter negari nō pōt. Sic arguendo nullus verè sanctus est in gloria beatus, nec venerādus, nec inuocandus, nec imitandus. Sed istę canonizatus est verè sanctus: ergo sanctus istæ canonizatus non est in gloria beatus neq; venerandus, &c. Sed est in inferno, nam supponitur, quod alibi esse non potest in æternum, & ita sapit hæresim.

{marg. *Argum. 1.*} ¶ Quod nō sit certū id dicere hæreticū esse probatur. Quia nō est certū canonizationē sanctorū ad fidē. I. ad regulam morum & vitæ omnino p̄tinere: sed quodāmodo aut medio modo se habet inter ea quæ pertinet ad fidem & regulam morum quæ sunt necessariò credenda ad salutē & ea quæ non pertinent ad hæc, vt expressè ait B. Tho. vbi supra. Ergo non est

English

rather obedience is to be given, it is had more at length below, quæst. 4., in the third opinion, in its first part and its proof, there: let it be seen.

H. Canonization: savoring of heresy by composition (p. 318)

{marg. badly inked italic note, apparently *Response to the second doubt*} ¶ To the second doubt, whether any canonized saint is or can be in hell, I respond that no: nay, I judge that even to say this is temerarious and impious besides, and savoring of heresy, yet not heretical; that it is temerarious and impious is established from the aforesaid.

¶ That it is savoring of heresy is proved, because its opposite savors of the faith. For that savors of the faith which in good consequence follows from one proposition of faith and from another which, although it be not of faith, nevertheless cannot reasonably be denied. And so it is in the case proposed. For it follows well in Darii, or in Barbara: every truly and finally holy man is blessed in heaven, and is to be venerated and invoked, and to be imitated in his holiness. But this man, and every canonized man, is truly and finally holy. Therefore he is also blessed in heaven and to be venerated, &c. Behold how, in good consequence, from that major of faith, and from that minor which cannot be denied except temerariously, irrationally, and impiously, as is established from the aforesaid, follows that conclusion savoring of the faith: whose opposite — namely, that a canonized saint is in hell — therefore savors of heresy. Which is proved again. For this proposition follows, in good consequence, in Ferio, from one heretical proposition and from another which cannot reasonably be denied. Arguing thus: no truly holy man is blessed in glory, nor to be venerated, nor invoked, nor imitated. But this canonized man is truly holy: therefore this canonized saint is not blessed in glory, nor to be venerated, &c. But he is in hell, for it is supposed that he cannot be elsewhere for eternity; and so it savors of heresy.

{marg. *Argument 1.*} ¶ That it is not certain that to say this is heretical, is proved. Because it is not certain that the canonization of saints pertains altogether to the faith, or to the rule of morals and of life: but in a certain manner, or in a middle manner, it stands between those things which pertain to the faith and the rule of morals, which are necessarily to be believed for salvation, and those things which do not pertain to these, as Blessed Thomas

Latin

hæreticum credere quod circa hoc Papa, & ecclesia etiam diu errare possit. vt patet etiam ex supradictis in q. 3. dub. 2. post omnia argumenta.

¶ Cōtra resolutionē primi dubij arguitur. quia quod est de fide credendum innititur auctoritati. l. reuelationi diuinæ, & nō solum humano testimonio fallaci. Sed ecclesia canonizādo sanctos innititur solum humano testimonio fallaci de vita & miraculis canonizādi. Ergo non est certum in his errare non posse. consequentia patet cum maiori. & minor probatur. Tum primo quia homines testificantes de sanctitatē & miraculis huius. l. illius decipi, & decipere possunt: neq; .n. de se, & de aliis possunt certitudinē habere infallibilē sine speciali reuelatione an sint sancti & in gratia, & vtrū ex gratia & amore Dei bene & p̄seueranter vsq; ad mortem operati sint, Tum ēt secundo. quia sicut ecclesia condēnando. l. absoluendo hæreticum accusatum s̄m̄ allegata & p̄bata falli, & fallere potest sequendo hominum testimonia & opinionem, vt habetur in ca. a nobis secundo. de sent. excomm. ita & in canonizando sanctos secundum hominum testimonia falli, & fallere, & errare potest.

{marg. *Respon.*} ¶ Respon. negando minorem. & ad eius probationes respon. quod licet per testimonia hominū inquirat ecclesia de sanctitatē & miraculis vt ita faciat qđ in se est: non tñ illis tñ innititur, sed pr̄cipuē illuminationi diuinē interiori eiusque essistentiē speciali: quē vt p̄babilissimē creditur nunquam in hoc deest neq; deerit ecclesię canonizanti. Et ita non certum de fide, sed de pietate, & probabilitate magna fidei est quod ecclesia in canonizatione sanctorum errare non potest, vt dictum est. in alijs aut sententijs actuū & personarum particularibus quæ non p̄tinent ad fidem & mores ecclesiæ generaliter vtq; ecclesia falli & fallere potest. Quia non eadem ibi ratio quē in canonizatione sanctorum ad fidem & mores pertinet est.

I. Liber I, Q. 17: the Immaculate Conception approbation (fol. 353)

{marg. *Argum.* (badly inked)} Si contra p̄dicta arguatur, q̄ regula monialium conceptionis facta per Iulium secundum confirmatur per ipsum, & per ecclesiam, vt patet latius infra in 6. conclusione in secūda & tertia probatione. Hæc aut approbatio

English

expressly says, vbi supra. Therefore it is not heretical to believe that concerning this the Pope, and the church too, can err even for a long time. As appears also from the aforesaid in q. 3. dub. 2., after all the arguments.

¶ Against the resolution of the first doubt it is argued: because what is to be believed of faith rests upon divine authority or revelation, and not only upon fallible human testimony. But the church, in canonizing saints, rests only upon fallible human testimony concerning the life and miracles of the one to be canonized. Therefore it is not certain that she cannot err in these things. The consequence, with the major, is evident. And the minor is proved. First, because the men testifying concerning the sanctity and miracles of this man or that can be deceived and can deceive: for neither of themselves nor of others can they have infallible certitude, without special revelation, whether they are holy and in grace, and whether out of grace and the love of God they have wrought well and perseveringly even unto death. Then also, secondly: because just as the church, in condemning or absolving an accused heretic according to the things alleged and proved, can be deceived and deceive, following the testimonies and opinion of men, as is had in ca. a nobis secundo. de sent. excomm., so also in canonizing saints according to the testimonies of men she can be deceived, and deceive, and err.

{marg. *Response.*} ¶ I respond by denying the minor. And to its proofs I respond that although the church inquires through the testimonies of men concerning sanctity and miracles, so as thus to do what is in her: yet she does not rest upon them only, but chiefly upon the interior divine illumination and the special assistance thereof: which, as is most probably believed, never is lacking, nor will be lacking, in this to the church canonizing. And so it is not certain of faith, but of piety and great probability of faith, that the church cannot err in the canonization of saints, as has been said. But in other particular sentences of acts and persons, which do not pertain to the faith and morals of the church generally, the church assuredly can be deceived and deceive. Because the same reason is not present there which, in the canonization of saints, pertains to faith and morals.

I. Liber I, Q. 17: the Immaculate Conception approbation (fol. 353)

{marg. *Argument.* (badly inked)} If against the aforesaid it be argued that the rule of the nuns of the conception, made by Julius the second, is confirmed by him and by the church, as appears more at length below in the 6th conclusion, in the second and third proof. But this approbation seems to have

Latin

videtur habere vim determinationis ecclesiæ, vbi sæpè dicitur quòd beata virgo sine macula originali cōcepta fuit: ergo oppositum tenere est hereticū, vel mortale peccatum.

{marg. *Respon.*} Resp. negando consequentiam, quia illa approbatio regulæ, & ecclesiæ determinatio non est de præcepto, nec est diffinitio iudicialis, aut obligans ad tenendum id tanquam de fide: sed est de consilio proponens, aut statuēs id tāquam de pietate fidei, & nō quoad omnes fideles, sed quoad eos tñ, qui in honorē immaculatæ conceptionis piè creditæ se cultui religionis illius viuendo sñ illam regulam dedicare voluerint. Itaque pia tñ credulitas cultus, atq; religio ad hanc pietatem fouēdam ordinata confirmatur, & approbatur sine præiudicio aliorū hanc pietatē non habentiū. Et qñ Papa in dicta regula sæpè dicit immaculatā beatæ Virginis conceptionē, id vtiq; dicit sñ piam credulitatem suā, & ecclesiæ, & aliorū id acceptare volentium, & nō aliter: sicut & sñ talem pietatem statuit officiū immaculatæ conceptionis recitandum. Hmōi enim multa solū de pietate statuuntur, atque legūtur in officio diuino, & lectionib. sanctorum.

English

the force of a determination of the church, where it is often said that the blessed virgin was conceived without original stain: therefore to hold the opposite is heretical, or a mortal sin.

{marg. *Response.*} I respond by denying the consequence, because that approbation of the rule, and determination of the church, is not of precept, nor is it a judicial definition, or obliging to hold it as of faith: but is of counsel, proposing or establishing it as of the piety of faith, and not as regards all the faithful, but as regards those only who, in honor of the immaculate conception piously believed, shall have wished to dedicate themselves to the observance of that religion, living according to that rule. Therefore only the pious belief, the cult, and the religion ordained for the fostering of this piety are confirmed and approved, without prejudice to the others who have not this piety. And when the Pope in the said rule often speaks of the immaculate conception of the blessed Virgin, he assuredly says this according to his own pious belief, and that of the church, and of the others willing to accept it, and not otherwise: just as also according to such piety he has established that the office of the immaculate conception is to be recited. For many things of this kind are established only of piety, and are read in the divine office and in the lections of the saints.